

Genu @ Ganesh @ Ganu And Ors vs Jalabai W/O Genu @Ganu @Ganesh on 5 December, 2024

Author: M.G.S.Kamal

Bench: M.G.S.Kamal

- 1 -

NC: 2024:KHC-K:9291
RSA No. 200374 of 2017

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 5TH DAY OF DECEMBER, 2024

BEFORE
THE HON'BLE MR. JUSTICE M.G.S.KAMAL

REGULAR SECOND APPEAL NO. 200374 OF 2017 (DEC/INJ)
BETWEEN:

1. GENU @ GANESH @ GANU S/O PEMU,
AGE: 67 YEARS, OCC: AGRICULTURE
2. SHARADABAI W/O GENU,
AGE: 55 YEARS, OCC: HOUSEHOLD
3. KANTABAI D/O GENU
AGE: 36 YEARS, OCC: HOUSEHOLD
4. DULIABAI W/O SANJU (D/O GENU),
AGED ABOUT 37 YEARS, OCC: HOUSEHOLD
5. SHIVAJI S/O GENU,
AGE: 31 YEARS, OCC: AGRICULTURE
6. RAMESH S/O GENU,
AGE: 29 YEARS, OCC: AGRICULTURE
7. SURESH S/O GENU,
AGE: 27 YEARS, OCC: AGRICULTURE,
8. RAJESH S/O GENU,

Digitally signed
by SHIVALEELA
DATTATRAYA
UDAGI
Location: HIGH
COURT OF
KARNATAKA

AGE: 26 YEARS, OCC: AGRICULTURE.

9. JYOTIBA D/O GENU,
AGE: 25 YEARS, OCC: HOUSEHOLD,

ALL ARE R/O. MOKIN TANDA,

-2-

NC: 2024:KHC-K:9291

RSA No. 200374 of 2017

SRINIVAS SARADAGI,
TQ. & DIST. KALABURAGI-585102.

...APPELLANTS

(BY SRI RAVI B. PATIL, ADVOCATE)

AND:

1. JALABAI W/O GENU @GANU @GANESH,
AGED ABOUT 66 YEARS, OCC: HOUSEHOLD,
R/O. PANEGAON, TQ. DIST. KALABURAGI-585701.
2. SUSHILABAI D/O GENU @GANU @GANESH,
AGED ABOUT 61 YEARS, OCC: HOUSEHOLD.
3. LALITABAI W/O RAMU,
AGED ABOUT 45 YEARS, OCC: HOUSEHOLD.
4. SUNITABAI W/O KALU,
AGED ABOUT 28 YEARS, OCC: HOUSEHOLD.
5. PUTALABAI D/O GENU @GANU @GANESH,
AGED ABOUT 29 YEARS, OCC: HOUSEHOLD,
RESPONDENTS 2 TO 5 ARE
R/O MOKIN THANDA, SRINIVAS SARADAGI,
TQ. & DIST. KALABURAGI-585701.

...RESPONDENTS

(BY SRI NARENDRA M. REDDY, ADVOCATE FOR R1 TO R5)

THIS RSA IS FILED UNDER SECTION 100 OF CPC,
PRAYING TO ALLOW THE APPEAL AND SET ASIDE THE
IMPUGNED JUDGMENT AND ORDER DATED 16.9.2017 PASSED
BY IV ADDITIONAL DISTRICT JUDGE AT KALABURAGI IN
RA.NO.189/2010 AND DISMISS THE SUIT IN O.S.NO.6/2009
ON THE FILE OF THE II ADDITIONAL CIVIL JUDGE(SR.DN) AT
GULBARGA.

THIS APPEAL, COMING ON FOR FURTHER HEARING, THIS

DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

- 3 -

NC: 2024:KHC-K:9291
RSA No. 200374 of 2017

CORAM: HON'BLE MR. JUSTICE M.G.S.KAMAL

ORAL JUDGMENT

(PER: HON'BLE MR. JUSTICE M.G.S.KAMAL) This appeal is by the defendants aggrieved by the Judgment and decree dated 01.07.2010 passed in O.S.No.6/2009 on the file of the II Additional Civil Judge (Sr.Dn), Kalaburagi, by which the trial Court while decreeing the suit declared that plaintiff No.1 is the legally wedded wife of defendant No.1 and defendants 2 to 5 are daughters and that they are entitled for 1/5th share each in suit properties and consequently granted injunction. Said Judgment and decree is confirmed by Judgment and order dated 16.09.2017 passed in R.A.No.189/2010 on the file of IV Additional District Judge, Kalaburagi (First Appellate Court).

2. The above suit in O.S.No.6/2009 is filed by the plaintiffs against the defendants seeking declaration that the plaintiff No.1 is the legally wedded wife of defendant NC: 2024:KHC-K:9291 No.1 and plaintiff Nos.2 to 5 are their daughters and for 1/5th share in the suit properties and for the consequent relief of injunction.

3. It is contended that the marriage of plaintiff No.1 was solemnized with the defendant No.1 in front of house of the defendant No.1 at Mokin Thanda Srinivasa Saradagi as per the prevailing customs in the community about four years prior to a drought year. At the time of marriage, the customary traditions were followed. Finally, bride and bridegroom took five rounds around the fire. Relatives and the villagers attended their marriage. They lived a happily married life for about 15 years, during which period plaintiffs 2 to 5 were born. That when plaintiff No.5 was in the womb of the plaintiff No.1, defendant No.1 started ill- treating the plaintiff No.1 on the ground that she was giving birth only to female children. As such, he has driven plaintiff No.1 along with children out of the matrimonial home. Ever since then, the plaintiff No.1 has been residing at her mother's place at Panegaon. It is NC: 2024:KHC-K:9291 further alleged the defendant No.1 had developed illicit relationship with the defendant No.2 and out of the said relation defendants 3 to 9 are born. That the plaintiff No.1 by raising loans and with the help from the other relatives brought up plaintiffs 2 to 5 and even performed their marriages. Though the defendant No.1 had assured to bear their expenses but refused to pay when the plaintiff No.1 requested. Plaintiffs requested the defendant No.1 for partition and to give their legitimate share in the properties he denied. Accordingly, they had filed a suit for partition before the Family Court, Kalaburagi in O.S.No.9/2005, which was decreed. However upon a challenge made by the defendants in RFA No.11990/2007, the Division Bench of this Court held that the said suit was not maintainable in view of Section 7 of the Family Courts Act and accordingly set aside the judgment and decree with liberty to the plaintiffs to approach Civil Court. Accordingly, the present suit for declaration, partition and injunction.

NC: 2024:KHC-K:9291

4. Defendants filed written statement denying the plaint averments and also denying the relationship of the plaintiffs with the defendants. It is contended that the plaintiffs have filed the suit only to knock off the property belonging to the defendants and to harass them without having any concern either to the family of the defendants or to the properties and sought for dismissal of the suit.

5. Trial Court framed the following issues:

- (1) Whether plaintiffs prove that, first plaintiff is legally wedded wife of first defendant and rest of the plaintiffs are their issues?
- (2) Whether plaintiffs further prove that, suit properties are available for partition and separate possession as prayed for?
- (3) Whether plaintiffs are entitled for suit reliefs as prayed?
- (4) What order or decree?

6. Plaintiff No.1 examined herself as PW1 and two independent witnesses have been examined as PW2 and PW3. Nine documents have been marked as Ex.P1 to P9. Defendant No.1 examined himself as DW1 and defendant No.2 examined herself as DW2 and exhibited five NC: 2024:KHC-K:9291 documents marked as Ex.D1 to D5. On appreciation of evidence the trial court answered issue Nos.1 to 3 in the affirmative and consequently decreed the suit as sought for. Being aggrieved by the same, defendants preferred regular appeal in R.A.No.189/2010 before the first appellate Court. Considering the grounds urged the First Appellate Court framed the following point for its consideration:

1. Whether the reasons assigned by the trial Court to come to the conclusion that the plaintiff No.1 is legally wedded wife of defendant No.1 and plaintiffs Nos.2 to 5 are the children of plaintiff Nos.1 and 2 and defendant No.1 are wrong?
2. Whether the impugned Judgment and decree passed by the court below is erroneous?
3. Whether the judgment and decree of the trial court requires interference?
4. What order or decree?"

7. On re-appreciation of the evidence, the First Appellate Court answered the said points in the negative and consequently dismissed the appeal with cost and confirmed the Judgment and decree passed by the trial NC: 2024:KHC-K:9291 Court. Aggrieved by the same, the present second appeal by the defendants.

8. Sri.Ravi B.Patil, learned counsel appearing for the appellants-defendants reiterating the grounds urged in the memorandum of appeal submitted that the trial Court and the First Appellate Court have not adverted to the merits of the case vis-a-vis the issues framed. He submits it was for the plaintiff No.1 to discharge her burden of proving her marriage with the defendant No.1 and also with regard to existence of the joint family properties and without discharging this burden she was not entitled for any relief. He submits the trial Court and the first Appellate Court though have framed the issues have not adverted to the merits of the case. He submits instead of calling upon the plaintiff No.1 to prove the marriage, the trial Court and the first Appellate Court have relied upon the deposition of defendant No.1, which was recorded in the earlier round of litigation in O.S.No.9/2005, which was filed by the plaintiffs before the Family Court. Judgment NC: 2024:KHC-K:9291 decree that was passed in the said suit has been set aside by the Division Bench of this Court in RFA No.11990/2007. As such, the trial Court and the first appellate Court ought not to have placed reliance on the said material.

9. He further submits that though defendant No.1 does not dispute of he being the father of plaintiffs 2 to 5, that alone cannot be the ground to hold that plaintiff No.1 is the legally wedded wife of defendant No.1. He submits even on merits it is the case of the plaintiff No.1 that she married defendant No.1 four years prior to the great famine when she was aged about 12 years. He submits if that is also taken into consideration, the marriage cannot be considered to be valid under law as marriage with the minor was illegal and void even on that count, he submits that the trial court and the first appellate Court erred in holding plaintiff No.1 to be the legally wedded wife of defendant No.1.

10. He further submits that suit schedule properties do not belong to defendant No.1 as there has been no

- 10 -

NC: 2024:KHC-K:9291 partition between defendant No.1 and his brothers. He submits that his brother has already filed a suit in O.S.No.207 of 2018 and the file of I Additional Senior Civil Judge, Additional CJM, Kalaburagi, which aspect of the matter would indicate that the properties do not exclusively belong to the defendant No.1.

11. Thus, he submits that both on legal and factual aspect of the matter the trial Court and First Appellate Court have erred in decreeing the suit giving raise to substantial question of law.

12. On the other hand learned counsel for respondent-plaintiff submits that defendant No.1 has not denied of he being the father of the plaintiffs 2 to 5. He submits the only contention taken up by the defendant No.1 is with regard to the date and rituals of the marriage ceremonies which was held during the marriage of the plaintiff No.1 with the defendant No.1. He submits that in this regard plaintiff has examined two independent witnesses as PW2 and PW3 in compliance with section 50

- 11 -

NC: 2024:KHC-K:9291 of the Evidence Act and that the credibility of the said witnesses has not been shaken or impeached by the defendants sufficient enough to hold the relationship between the plaintiff No.1 and the defendant No.1 as that of the husband and wife.

13. As regards the properties concerned he submits there is no denial of the claim of the plaintiffs of the suit properties being the ancestral properties. In the written statement it is stated that the suit schedule properties are the ancestral joint family properties of the defendant No.1, as such plaintiffs are entitled for the share therein.

14. In response to the claim purportedly made by the brothers of the defendant No.1 by filing a suit in O.S.No.207/2018, learned counsel for the plaintiffs submits such a suit has been filed after filing of the present appeal only to avoid and prevent the plaintiffs from enjoying the fruits of the decree passed in these proceedings. Thus he submits no substantial question of

- 12 -

NC: 2024:KHC-K:9291 law arises for consideration and seeks for dismissal of the appeal.

15. Heard and perused the records.

16. The plaintiff No.1 in the plaint as well as in the evidence has specifically contended that her marriage with the defendant No.1 was solemnized about four years prior to the great famine which had occurred in the region of their residence. The plaintiff has further averred that a marriage ceremony consisting of pouring of honey and ghee and taking five steps around the holy fire was performed in the presence of the elders in front of the residents of the defendant No.1. In support of her evidence, she has examined two witnesses PW1 namely Ishwar and PW-3 namely Nandu. The said witnesses have reiterated the contents of evidence of the PW1. They have withstood the test of cross examination. They have also spoken about the ceremony of pouring of ghee and honey and taking rounds around the holy fire. Though it is submitted on behalf of defendants that as per the

- 13 -

NC: 2024:KHC-K:9291 deposition of PW1 to PW3, its only five rounds that were taken around the holy fire it did not comply with the requirement of saptapadi.

17. As rightly taken note by the trial Court and the first Appellate Court strict adherence to the ritual of saptapadi practically seven rounds around the holy fire is no more considered to be the integral part of a valid marriage. If a particular community is following five rounds around the holy fire that would not lessen the credibility of the marriage. Moreover, it is also necessary to note there is no denial in the written statement with regard to five rounds having been taken around the holy fire as per the customs persistent in the community of the defendants and plaintiffs. Further, as rightly taken note of by the trial Court and the First Appellate Court, considering the literacy level of the plaintiff No.1, one cannot expect her to be precise about the date, time, month and year of the marriage.

- 14 -

NC: 2024:KHC-K:9291

18. The other contention urged by learned counsel for the appellants is that as on the date of the marriage, age of the plaintiff No.1 was allegedly around 12 years. He therefore, submits marriage of couple of that age is void. Therefore, he submits that alone is sufficient to hold that there was no valid marriage.

19. Necessary to note that in terms of Section 5(iii) of the Hindu Marriage Act, age of the bridegroom shall not be less than "twenty-one years" and the age of bride shall not be less than "eighteen years" at the time of marriage. The said words "twenty-one years" and "eighteen years"

were substituted for the words "eighteen years" and "fifteen years" as amended by the Child Marriage Restraint (Amendment) Act 2 of 1978. The trial Court and First Appellate Court considering the contention of the plaintiff of her marriage having been conducted before the great famine in the locality, have approximately found that the marriage of the plaintiff must have been performed during the year 1972. The age of the plaintiff in the cause title of

- 15 -

NC: 2024:KHC-K:9291 the plaintiff is shown as 58 years as on the date when the suit was filed on 01.01.2009. Age of defendant No.1 is shown as 60 years. Taking this aspect of the matter even in the year 1972 parties were major. Assuming parties were minor as contended by the learned counsel for the appellants-defendants that alone would not render the marriage void. Contravention of Section 5(iii) of the Hindu Marriage Act would not lead to determination of marriage. Reference may also be made to Sections 11, 12 and 13 of the Hindu Marriage Act where contravention of Section 5(iii) is not a ground for holding a marriage to be void or voidable or being a ground for divorce. At the most that could be a ground for punishment for contravention of Child Marriage Restraint Act.

20. Necessary to note that the plaintiff No.1 on the other hand continued to live with the defendant No.1 and plaintiff No.1 has procreated five daughters out of the said marriage, three daughters and four sons out of the second marriage. Defendant No.1 does not dispute of he being the

- 16 -

NC: 2024:KHC-K:9291 father of the plaintiffs 2 to 5. In O.S.No.9 of 2005, which was filed before the Family Court, defendant No.1 has admitted himself to be the father of plaintiffs 2 to 5 and has even deposed that he had performed the marriage of plaintiff Nos.2, 3 and 4. However, he has improved his version of denial in the present proceedings.

21. The trial Court while answering issue Nos.1 and 2 at paragraph 8, pages 10 and 11 of its judgment has extracted the deposition of DW1 recorded in the earlier round of litigation in O.S.No.9 of 2005. Further, the plaintiffs have produced original marks card, election identity card, voter list of plaintiffs 2 to 5 wherein the defendant No.1 has been shown as their father.

22. In the light of the oral and documentary evidence, the trial Court and the First Appellate Court have come to the conclusion that plaintiff No.1 is the legally wedded wife of defendant No.1 and plaintiffs 2 to 5 are the children born to them. This Court do not see any reason to

- 17 -

NC: 2024:KHC-K:9291 differ from the reasoning, finding and conclusion arrived by the trial Court confirmed by the first appellate Court.

23. As regards the contention of the suit properties being the joint family properties, perusal of the written statement would indicate that there is no denial by the defendants in this regard, except denial of plaintiffs being the members of the joint family. Another aspect of the matter to be seen is that during the cross examination DW1 has in his deposition recorded on 12.04.2010 has stated that "It is true to say that, entire suit property are ancestral property. We are three sons to parent. They are myself Bhoju and Rupla. There was a partition among my brothers."

24. The deposition of defendant No.1 would categorically establish the suit properties are the ancestral properties belonging to the defendant No.1. And there was already a partition between the defendant No.1 and his brothers.

- 18 -

NC: 2024:KHC-K:9291

25. A suit now seem to have been filed by one Subhash son of Rupla Rathore, brother of the defendant No.1 in O.S.No.207/2018 which cannot undo the fact of suit properties being the ancestral properties belonging to defendant No.1.

26. The aforesaid findings and conclusion arrived at by the trial Court and the First Appellate Court are all based on the facts, there is no reason for this Court to interfere and differ with the same. No substantial question of law therefore arises for consideration. Accordingly, appeal is dismissed. Judgment and decree dated 01.07.2010 passed in O.S.No.6/2009 by the trial court confirmed by the first appellate Court by its Judgment and order dated 16.09.2017 in R.A.No.189/2010 is confirmed.

Sd/-

(M.G.S.KAMAL) JUDGE SBN CT:PK